

50-state guide for recovering deposits when landlord has no written agreement, with legal options — Action Checklist

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RESEARCH YOUR STATE LAW

- ☐ **Research Your State Law:** Search "[Your State] security deposit statute" to find the specific state code section that governs your deposit rights and obligations. (24 words)
- ☐ **Find Your Deposit Cap:** Locate your state's maximum deposit limit to determine if you overpaid and what amount your landlord must return regardless of any written agreement. (26 words)
- ☐ **Note the Return Deadline:** Find your state's deposit return timeline in the statute so you know exactly when your landlord must return your money after move-out. (25 words)
- ☐ **Check the Penalty Clause:** Review your state's penalty provisions to understand how much your landlord automatically owes if they fail to return your deposit on time. (25 words)

GATHER YOUR EVIDENCE

- ☐ **Collect Payment Records:** Pull bank statements, Venmo, PayPal, or Zelle records that show the exact amount you transferred to your landlord for the security deposit. (25 words)
- ☐ **Preserve All Correspondence:** Save every text message and email exchanged with your landlord that references the deposit, unit, or move-in date as evidence of the implied contract. (26 words)
- ☐ **Document Move-In Condition:** Create a written record of the unit's condition when you moved in, including photos and descriptions, to establish the baseline for move-out comparisons. (26 words)
- ☐ **Get Move-Out Inspection:** Request a written move-out inspection from your landlord and keep a copy of any inspection report or checklist they provide, no matter how brief. (26 words)

TAKE ACTION TO RECOVER

- ☐ **Send a Demand Letter:** Write to your landlord requesting your deposit back with a specific deadline, referencing your state's statute and the penalties they face for non-compliance. (26 words)

 - ☐ **Send via Certified Mail:** Mail your demand letter by certified mail with return receipt requested so you have legal proof your landlord received and ignored your request. (25 words)

 - ☐ **File in Small Claims Court:** If your landlord ignores the demand letter deadline, file a claim in your local small claims court for the deposit plus statutory penalties. (25 words)

 - ☐ **Request Maximum Damages:** When filing your claim, request the full statutory penalty amount from your state statute, not just your original deposit, because penalties apply automatically. (26 words)
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.